

CAMBERWOOD CHILDREN'S HOSPITAL
OFFICE OF LEGAL COUNSEL

PRIVILEGED AND CONFIDENTIAL · LEGAL ADVICE

To: Dr Helen Nkemelu, General Paediatrics
From: Rachel Ostrowski, Senior Legal Counsel
Date: 30 May 2002
Re: Subpoena · BYRNE (UR 4471902), Family Court proceedings

You have asked what the hospital must produce in response to the subpoena served on 24 May.

My advice is as follows.

1. The subpoena is drawn broadly and, on its face, captures the social work file as well as the clinical record. We should object to the breadth of paragraph 3 rather than produce the social work material.
2. The notifier's identity is protected and must not be produced in any form. Producing material from which the notifier could be identified by inference would carry the same exposure as naming them.
3. If the Court presses, our position is that production should be limited to the clinical record proper. I do not consider the hospital is at risk of a costs order for taking that position.

Please do not copy this advice to either parent or to the treating team more broadly. It has been placed on file for your reference only.

R. Ostrowski
Senior Legal Counsel